

SENATE No. 302

The Commonwealth of Massachusetts

PRESENTED BY:

John F. Keenan

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act addressing economic, health and social harms caused by sports betting.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>John F. Keenan</i>	<i>Norfolk and Plymouth</i>	
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>1/18/2025</i>
<i>Patricia D. Jehlen</i>	<i>Second Middlesex</i>	<i>2/19/2025</i>
<i>John J. Cronin</i>	<i>Worcester and Middlesex</i>	<i>7/31/2025</i>
<i>Peter J. Durant</i>	<i>Worcester and Hampshire</i>	<i>8/12/2025</i>

SENATE No. 302

By Mr. Keenan, a petition (accompanied by bill, Senate, No. 302) of John F. Keenan, Lindsay N. Sabadosa and Patricia D. Jehlen for legislation to address economic, health and social harms caused by sports betting. Economic Development and Emerging Technologies.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act addressing economic, health and social harms caused by sports betting.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 3 of chapter 23N, as appearing in the 2022 Official Edition, is
2 hereby amended by striking out, in line 150, the following words:- “in-play bets, proposition bets
3 and straight bets”, and inserting in place thereof the following words:- “and straight bets;
4 provided, however, that sports wagering shall include neither in-play bets nor proposition bets”.

5 SECTION 2. Section 4 of said chapter 23N, as so appearing, is hereby amended by
6 striking out, in line 22, the words "and (E)", and inserting in place thereof the following words:-
7 "(E) advertising related to sports wagering during a televised sporting event; and (F)"

8 SECTION 3. Section 11 of said chapter 23N is hereby amended by inserting, after the
9 word "owners", in line 5, the following words:- ", agents, promoters".

10 SECTION 4. Said section 11 is hereby amended by striking out, in line 20, the words
11 "and (v)", and inserting in place thereof the following words:- “(v) prohibit person from placing
12 wagers with an operator of more than \$1,000 per day or \$10,000 per month without said operator

having conducted an affordability assessment of said person and determining that the daily or monthly amounts wagered do not exceed 15 per cent of the amount said person has available in a bank account; and (vi)”

SECTION 5. Said section 11 is hereby further amended by inserting the following subsection:-

(l) Operators, directors, officers, owners, employees, affiliates and subcontractors of the operator or sports wagering operator shall receive no compensation for any percentage of wagers or deposits placed by a customer of the operator or sports wagering operator.

SECTION 6. Section 14 of chapter 23N is hereby amended by striking out the figure "20", in line 4, and inserting in place thereof the following figure:- "51".

SECTION 7. Section 15 of said chapter 23N is hereby amended by striking out the figure "\$1,000,000", in line 37, and inserting in place thereof the following figure:- "\$2,000,000".

SECTION 8. Section 23 of said chapter 23N is hereby amended by inserting, after the word “gambling”, in line 15, the following words:- “and suicide attempts, suicides and self-harm among gamblers”.

SECTION 9. Said section 23 is hereby further amended by inserting the following subsection:- (c) Annually, each holder of an operator license that accepts wagers on sports events and other events authorized pursuant to this chapter from individuals physically located in the commonwealth using mobile applications or digital platforms approved by the commission shall supply the commission with customer tracking data collected for each player’s online gambling. The commission shall contract with an experienced nonprofit research entity to develop an

anonymizing system that automatically removes from the customer tracking data personally identifying information including player name, street address, bank or credit information and the last 4 digits of a player's zip code. The customer tracking data shall report on player characteristics including, but not limited to, gender, age and region of residence; player behavior including, but not limited to, frequency of play, length of play, speed of play, local time of play, amounts wagered and, for each wager, whether the wager was (i) made during the sports contest or before the contest began, or (ii) a parlay wager. The commission shall convey the anonymized data to an experienced nonprofit research entity that shall make the data available to qualified researchers to (i) conduct analyses that improve understanding of how gambling addiction develops and progresses; (ii) develop evidence-based harm minimization strategies; and (iii) develop evidence-based systems to monitor, detect and intervene in high-risk gambling. The commission shall request reports on the customer tracking data to improve oversight of sports gambling operations.

SECTION 10. Section 2 of chapter 93A is hereby amended by inserting the following subsection:-

(d) The provisions of subsection (a) shall apply to advertising and promotion of wagers authorized under chapter 23N related to any (1) bonus promotions, (2) same-game parlays, (3) odds boosts, (4) reload bonus or (5) risk-free, no-sweat or other free wagers commonly understood to have a similar meaning and utilized to attract a person to patronize a qualified gaming entity.